CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY
REGULAR COMMISSION MEETING
April 28, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:10 p.m. on Wednesday, April 28, 2010 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, Interim City Attorney Joseph S. Geller and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Manager Patterson deferred agenda items 16-6 and 16-10 to the next regular commission meeting of May 12, 2010.

Commissioner Johnson pulled agenda items 16-2, 16-4, 16-5, 16-7, 16-9, 16-11; Commissioner Tydus pulled agenda items 16-1, 16-3; and Mayor Kelley pulled agenda items 16-8 from the consent agenda (these items would be discussed separately under Action Items).

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – 04/14/2010

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of April 14, 2010.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison for Miami-Dade County Commissioner Barbara Jordan (District 1) came forward to address any concerns.

Commissioner Johnson and Mayor Kelley thanked Commissioner Jordan for her attendance and support at the Town Hall Meeting.

10. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

11. PUBLIC PRESENTATION:

Commissioner Johnson reminded the Commission that several years ago she spoke to them relating to the Global Sustainability with the celebrities and football players. As a result, she was in touch with Mrs. Wright and is hoping that the presentation would note that she had done the sweat equity in that the license fee was waived.

1. **Maggy Ducena-Wright, RN CNCM**
   Down To Earth G.S.I. Inc.

Maggy Ducena-Wright, President / CEO of the Down to Earth Global Sustainability Initiative came forward and stated that the initiative is a community based environmental protection campaign providing events to provide "go green" knowledge to the residents of the community. On April 21, 2010 she received notification by the Department of Energy that she was preliminary selected to present pilot projects for ten cities. This is a 30 Million Dollar grant which will bring Three Million Dollars of weatherization activities and resources to the residents of the City of Opa-locka. It was the recommendation of Commissioner Johnson that she offer this pilot program not only to the City of Opa-locka but also to the City of Miami Gardens. In addition, this program would bring 78 green jobs to the City of Opa-locka. She further provided specifics in terms of the requirements from the city to participate in the program.

She requested that the Commission accept this program.

Mayor Kelley suggested that Mrs. Wright meet with the City Manager.

11a. CITIZENS' FORUM:

1. Emounte Banks of 2771 NW 152nd Terrace, Miami Gardens, Florida, appeared before the City Commission to speak on the Opa-locka Labor Workforce Project. As the individual overseeing the program, he provided the Commission with copies of all checks paid by the city for the expenses incurred as well as payroll incurred to individuals including Christopher Hinds.

Based on the statement made by Mr. Banks in terms of running the Opa-locka Labor Workforce Project, Commissioner Johnson stated to the City Manager that she didn't remember that ever being a part of this initiative.

Manager Patterson advised the Commission that he previously provided a report on the Opa-locka Labor Workforce Program which was originally assigned to Octavian Spanner and he was the person held responsible for running the program.

Mr. Banks added that Mr. Spanner was the person he was in direct contact with and giving directions as to what needed to be completed in the city.

2. Ed Moore, staff representative for AFSCME Council 79 and AFSCME Local 2068 of 99 NW 183rd Street, Miami Gardens, Florida, appeared before the City Commission and thanked Commissioner Holmes for the resolution to give the employees the salary they should have had a long time ago. For informational purposes, he said that negotiations on the contract started in August 2008 and the contract was ratified by the membership on February 23, 2009 and here it is April 2010 and that contract has not been brought to the Commission for approval and the employees haven't received their money. Should the city not like the contract, then it is up to the Commission to vote it up or down; however, leaving the employees without a contract or a pay increase is unfair.

Commissioner Holmes informed Mr. Moore of the list he had of a "no vote" from employees. The Commission cannot support the contract if the members in the union don't agree with it and that is the main reason why the City Manager pulled the item off

the agenda. He requested that he is provided with a listing of employees who are in support of the contract and if there's a majority then he would be more in favor to support the contract.

He continued by saying that he initiated the union in the 1990's for the employees because he felt they needed to have something to fall back on should anything happen to them in the city government. He had even made comments over the years so that the directors do not bust the union. At the beginning, the union started out with over 100 employees and now they don't even have 50 employees so something must be definitely wrong. He suggested that the union get together with the employees and straighten this issue out. In Mr. Moore mentioning the 3% increase to the employees that he is proposing, he said that the 3% is to give the employees a raise because he feels that they need an increase but it doesn't have anything to do with the contract.

Commissioner Johnson stated that she is very aware of contracts but she is under the opinion if the 3% increase to all employees pass it is because the Commission feels it is due diligence to the employees. In addition to that, if that many employees are at odds with anyone negotiating for them then she too could not support the agreement because the employees are the ones to drive the union in the City of Opa-locka.

She continued to request that Mr. Moore get with the employees because if there's a great decrease in membership then something is wrong.

Mr. Moore advised that he has knowledge of the "no vote" Commissioner Holmes was referencing; however, he has a list of the election that was held on February 23, 2010 with the members who voted for the contract which are about 25 employees. He said there's another document after the "no vote" occurred based on the investigation conducted by the city's Human Resources Department there are eight people on the list who didn't vote on the contract. This is why AFSCME Council 79 ruled that election to be improper and elected to conduct another election controlled by AFSCME.

Commissioner Johnson stated that the documentation doesn't tell her whether the employee voted for or against it. She asked, what is the percentage that voted for the union?

Mr. Moore stated that approximately 28 members voted at the February 23 election. He said he wasn't trying to get the Commission to do any other thing than put it on the agenda and vote it up or down.

Commissioner Johnson stated that in her opinion a computerized signature on a document was not a legal document. She suggested that Mr. Moore met with the City Manager and City Attorney to get some closure on this matter and have some sort of unity.

Commissioner Holmes stated that instead of the City Attorney and City Manager, Mr. Moore needed to get with the union members to vote either yes or no for the contract and then he could let the city know how many people voted for and against the union.

Mr. Moore stated that he is only there to request that the Commission consider the contract and either vote it up or down.

Commissioner Holmes reiterated that Mr. Moore pass a slip out to the employees to see who is for or against the union.

Mayor Kelley said that he stated six months ago because he knew they would get to this due to the off and on challenges regarding unions versus what's happening in the city. It is very clear that the Commission wants to make sure the employees are treated fairly which is why his colleague has sponsored the legislation and Mr. Moore is requesting that the Commission consider the contract if the employees are for it or not. He suggested if Mr. Moore felt that the union membership has indicated to move forward then he can send it back to the City Manager for placement on the agenda and the Commission would deal with the issue at that time.

2. Johnnie Mae Greene of 2091 Wilmington Street, Opa-locka, Florida, appeared before the City Commission and spoke in favor of the resolution to hire Joseph Geller as City Attorney for the City of Opa-locka. She also spoke about the resolution relating to the bond and suggested that it be tabled until the citizens had a chance to meet and discuss the impact of such an item.

She congratulated the Commission for the butterfly garden, the multi-purpose building, upgrade of the Helen L. Miller / Segal Park and the great job done on the alleys and median strips.

In response to Ms. Greene's remarks concerning the Interim City Attorney, Commissioner Holmes explained that there were two resolutions on the agenda; one for a permanent position and the other for a six month extension. Upon resignation of the previous city attorney, he said he sponsored a resolution for an in-house attorney according to the Charter which was supported by his colleagues. Based on that resolution, he sponsored the resolution for a six month extension for the City Attorney.

He continued by saying that the Commission now wants to go against the city's charter and hire Mr. Geller as City Attorney. In order to address the charter, it must go out for a referendum to allow the citizens to vote on it. However, in the meanwhile he doesn't feel he could support the appointment of Mr. Geller as the City Attorney because of what's provided for in the charter.

Ms. Greene stated that with Mr. Geller she sees more professionalism and accountability and that's why she had come forward to express her opinion.

3. John Riley of 2963 NW 135th Street, Opa-locka, Florida, came forward and stated with all due respect to what Commissioner Holmes has stated; however, he has to make the record straight. In 1989 the Commission passed an amendment Section 38 of the Charter by ordinance and in 1999, Felix Martinez and John Riley filed a lawsuit against the City of Opa-locka for amending the charter by ordinance. The third District Court of Appeals affirmed the lower courts decision that the charter has to be done referendum and it cannot be done by ordinance and since the current Section 38 was done by

ordinance, it is invalid. The City of Opa-locka by its charter is not required to have a full time attorney; but requires the city to have an attorney. The charter was first enacted in 1956 and later in 1959 was the current was for that particular charter. The only other amendment by referendum was on February 5, 1985 and there has been no referendum on Section 38 of the charter. The amendment done by Ordinance in 1989 is invalid.

He said he would hope to put this issue to rest so that he could stop hearing that the city has to have an in-house attorney because that is not what the charter states. However, if the Commission wants an in-house attorney then it needs to go back to the people, put it out for referendum and let the people vote on it.

Commissioner Holmes stated that he has always said if anyone in this city knows the charter, it's Mr. Riley. And Mr. Riley has heard the Commission on many occasions say they are going to hire an attorney according to the charter. He suggested that Mr. Riley not come to the meeting because of the person now sitting in the seat. Although he didn't have a problem hiring Mr. Geller as a full time attorney, the Commission adopted a resolution to go out for a search for an in-house City Attorney according to the charter and that was based on the information over the years when they have hired and fired attorneys. He stated to Mr. Riley that if he is such an expert on the charter, why wait until now to bring the issue up instead of bringing it to the attention of the Commission months or years ago.

Mr. Riley explained that he has had a resolution for the Commission to send Section 38 out for a referendum since 2000 and the Charter Review Board's last report asking for a public hearing on those resolutions included Section 38. However the Commission wants to go about this, there has been a court ruling and the Third District Court of Appeals has affirmed it and it is now law. The code of the City of Opa-locka provides that it would follow Article V of the Miami-Dade County code in order for it to amend the charter. Article VI (11) of the Constitution of the State of Florida grants the power solely to the Miami-Dade County Commission on how municipalities would amend their charter.

Commissioner Holmes stated that he didn't have a problem with a referendum to change the charter. He suggested that Mr. Riley submit the information from the Charter Review Board to the attorney; however, he would not sit there and vote for Mr. Geller as permanent in-house attorney according to what has been done for the past years or how the charter is set up now. In the meantime, he sponsored a resolution to extend his service for six months and within those six months the city should be able to send it out for referendum to be voted on by the citizens.

4. Ms. Mitchell of 14170 NW 22nd Place, Opa-locka, Florida, appeared before the City Commission regarding a matter she brought before them in July 2009 relating to a neighbor and now the situation has escalated. She expressed her concerns relating to the police department, an officer, her brother being incarcerated and not being able to get a copy of the police report.

Mayor Kelley stated that he sent this complaint over to the City Manager and the Opa-locka Police Department because Ms. Mitchell had been before the Commission in the past. He said he was disturbed with the fact that Ms. Mitchell had not received any

correspondence or communication from his understanding. After sending the information to the City Manager, Ms. Mitchell just stated that she still had not received any communication from the city and she should have received something by now.

He directed the City Manager to have personnel from the Opa-locka Police Department resolve this issue before the evening was over. In moving forward the City Manager must address, not just with police related issues, these same type of challenges with communication back to citizens when they're either requesting or have a concern as to how the city responds or does not respond to them.

Ms. Mitchell asked, what is the time frame for receiving a report after a case number is issued?

Deputy Chief Adam Burton of the Opa-locka Police Department came forward and stated that the time frame would depend on the type of case and whether it's still under investigation. On this particular case, the Opa-locka Police Department is still looking at it as far as what took place but he could get with the citizen after the meeting is over.

Mayor Kelley stated that he would like for the city to get the issue resolved but his biggest concern at this moment is the communication of information so that the citizen would know they have a level to know that the issue is being addressed.

Vice Mayor Taylor stated that the City Manager's Office has OCS to answer complaints. She asked does the police department have anyone that can communicate in between while the investigation is being completed?

Deputy Chief Burton stated that the lead investigator is the person who could speak to that particular case.

Mayor Kelley directed the Deputy Chief to resolve this issue, provide a report to the City Manager so that he can answer to the Commission.

5. Frank Hall of Fidelity Financial Services appeared before the City Commission and provided clarification on the financial advisory services in which they have been providing services to the city. Back in March 2006, Fidelity Financial Services entered into an agreement with the city which provided for an initial term of three (3) years with two (2) additional one year option to extend the contract. Since that time they have provided services to the city and it is their opinion the renewal options are being exercised by city staff and administration. The contract as presently written calls for a written notice to be given in the case of termination; however, written notification is not necessary in extending the contract. Fidelity Financial Services has been working and providing service to the city under since March 2006. He said he was perplexed to see agenda item 16-9 on the agenda which authorizes the City Manager to go out for an RFQ to solicit the services of financial advisor.

6. Terence Pinder of 941 Ali-baba Avenue, Opa-locka, Florida, appeared before the City Commission and stated that it was interesting Mr. Hall just left because he served at that time and all contracts are passed by ordinance but he never remembered that.

He continued by piggybacking on Johnnie Greene's statement relating to the bond issue in that the citizens are not getting the opportunity to get educated on this very important item. He suggested that the city schedule a meeting to get the citizens involved. He further recommended that the Commission go out for an RFQ for bond counsel.

12. ACTION ITEMS (items from consent agenda pull list):

16-1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO AUTHORIZE A THREE PERCENT (3%) COST OF LIVING INCREASE TO ALL CITY EMPLOYEES RETROACTIVE TO JANUARY 1, 2010 TO BECOME EFFECTIVE IMMEDIATELY UPON ADOPTION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

It was moved by Commissioner Tydus, seconded by Commissioner Johnson to pass the above resolution.

In view of the fact that the city has the union contract pending, Commissioner Tydus asked, how is the contract affected in the adoption of this resolution?

Attorney Geller stated that the resolution on its terms states "all city employees". It is possible that the Commission, if that was his intent, could say that this applies to city employees not governed by a union contract. If the intent of the union negotiations is to give somebody a 3% raise then the city doesn't want to give the raise twice. If the employees get the raise from this resolution then it would certainly affect what they would do in terms of approving any contract with either group of union employees if they're getting a raise as a result of this resolution unless it was the intent of the sponsor to give a 3% here and a separate negotiated raise in the contract. The Commission can approve this and either that can affect what they do in finalizing the negotiations with the unions or they could give this raise and negotiate other raises in the contracts but it is the pleasure of the Commission.

Commissioner Tydus stated that the Commission needs to understand all of the ramifications.

Attorney Geller advised that if the Commission approves the resolution for all employees then they certainly need to consider that they've have done this before approving any union contract. This is not to say that the Commission cannot then approve a union contract with other raises but on the other hand they can say they will not going to give another raise in the union contract. Should the Commission adopt the resolution then they need to at least consider this before adopting a union contract to determine whether this raise is what they're planning on giving the union employees or whether they're planning on giving them any additional raise but they can't give them less once they've adopted this resolution.

Commissioner Tydus informed Attorney Geller that he clarified the important things they need to consider before adopting this resolution. She said she is pro employees and the

majority of employees are hard working and deserve a cost of increase and merit increase as well. She cautioned the Commission to consider everything that Attorney Geller has stated and make those considerations clear in addressing this resolution.

She further asked, how would this increase affect the budget and is the city prepared at this time?

From the discussion, Manager Patterson stated that there seems to be some internal problems within the AFSCME union and he would like to point out that the city has all but completed the PBA negotiations. The AFSCME contract is an internal dispute that as City Manager he doesn't want to be drawn into that situation because it is limited within that organization to resolve those differences. The Commission, in giving all employees (union and non-union) an increase could set themselves up for unfair labor practice which the city could be liable for. He advised that the Commission allow the city to move forward with the negotiating process and allow him to bring it back for them to either vote it up or down. He advised that he believes the city could wrap up the PBA negotiations in another session.

He further stated that the city could deal with the impact of what's already been negotiated with the union; however, anything over and beyond that the city is not prepared for.

Commissioner Tydus stated that her main concern is the legal liabilities the city is faced with; therefore, she cannot support this resolution at this time until there's conclusion with the PBA and AFSMCE contracts.

Commissioner Johnson stated that if the Commission is going to look at the 3% for all employees in this fiscal year then they must go back to October 1, 2009 and not January 2010.

She continued by asking whether the 3% is included in the current adopted budget?

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the 3% is included in the proposed budget amendment but was not budgeted in the current adopted budget. The city has always budgeted for a 3% increase for employees; however, during the budget workshop and the preliminary discussions there was no cost of living adjustment or merit increase considered.

Although there weren't any merit increase considered, Commissioner Johnson stated that there also wasn't any consideration for the increases given, annual leave paid out, the staff severance of $18,000.00 used and it also projected a $500,000.00 the city anticipated getting from the bond but all that was straightened out. The city knew of all the employees and they weren't going away during the year because the Commission stated that there wouldn't be any terminations based on the budget. In looking back in previous year's budget, an increase for the employees was always included and she would like to know why it wasn't included in the current budget.

Dr. Orji advised that there was a workshop with the Commission and based on the directives at the preparation of the budget staff presented a budget that didn't include a cost of living adjustment which was approved.

Mayor Kelley recalled the workshop and stated that the main concern was making sure none of the employees were laid off and one of the things the City Manager at that time and the Finance Director stated that in order to make sure no employees were laid off, the city couldn't do a cost of living increase; therefore, it wasn't included in the budget. However, the Commission did say if the revenue projections got better then they would include the cost of living increase which is being included with the budget amendments.

Commissioner Johnson stated that without having an approved contract, it needs to be amended and it needs to specify that it's for this period. With the resolution being so universal, the employees can come back after receiving the 3% and then come back wanting an additional 3% as a part of the agreement when the city doesn't have the funds for it.

Mayor Kelley stated that the City Manager indicated that he preferred not to do anything because he is concerned about that same issue.

Vice Mayor Taylor stated that she was in favor of the employees getting a cost of living raise; however, she understood what the City Attorney and City Manager stated in terms of a potential problem prior to getting into an agreement with the two unions. She stated that she was leaning toward the City Manager in foregoing the resolution for a minute.

She continued by asking where would the city get the money from if this resolution passed since Dr. Orji has already indicated that the 3% was not included in this year's budget.

Dr. Orji advised that the budget amendment discussed at the workshop would account for the increase.

Vice Mayor Taylor asked, did the city account for the negotiations of the two unions which are not complete?

Dr. Orji replied, yes, if the amendment is approved.

Vice Mayor Taylor reiterated that she is in agreement with the City Manager to wait until everything comes back.

Although the 3% was not included in the budget, of concern to Commissioner Holmes was the fact that there were a lot of individuals hired in the current budget as well as those that received bonuses and increases. He stated that the 3% is to give the employees an increase and has nothing to do with the unions. The Commission can use the 3% as a bargaining tool for the employees because they would ultimately have to make that decision and he won't vote on an additional 3% for the union employees knowing they just approved a 3% for all employees.

He continued by saying that there's a problem between the employees and the union and there is no telling as to when an agreement for a contract would be reached. The resolution is not being based on the union contract but to provide the employees with some type of relief and that is what the 3% increase in the resolution is all about. He said he was not going against the City Attorney or City Manager but the Commission will have to vote on the contract.

Mayor Kelley asked for clarification from the attorney in terms of passing this resolution while the PBA negotiations are almost complete; therefore, the 3% increase would be on top of whatever has already been negotiated.

Attorney Geller advised that it would be up to the Commission.

Mayor Kelley stated that if the Commission approves a 3% increase it's for all employees and whatever the city negotiates this would be an addition to. Dr. Orji stated that the city has sufficient funds to cover the increases.

Dr. Orji stated that the city has budgeted for the negotiations for PBA and the 3% in the budget amendment. Should the 3% increase be approved for all employees then the city would have to adjust whatever is being proposed to PBA by 3%.

Mayor Kelley stated that there is a potential for this to be higher and his question is whether the city has the money for it?

Attorney Geller explained that Dr. Orji is not saying the city has the money to give PBA 3% plus what the city is negotiating. The other thing is that the city's step approach to PBA actually might not result in all the officers receiving 3% because they are really trying to target the most underpaid officers.

Mayor Kelley pointed out that if this resolution passes every employee would receive a 3% increase and his concern is whether the city has the funding in the budget amendment to accommodate that. Dr. Orji has indicated that the funding is included in the budget amendment; however, being in the workshop he can't recall that much being in there.

He continued by saying that Mr. Moore has been to several meetings where union issues have come up and Mr. Moore has never appeared before the Commission until that day. Mr. Moore was a about saying to either vote it up or down. Although he is not the mediator or the City Attorney, but Mr. Moore is saying to the Commission that he is coming before them to ask them to consider the union contract whether they vote for it or not and then the City Manager mentioning the unfair labor practices has him wondering what that's all about.

He further stated that this puts the Commission in an awkward position because if they vote no it sends the message to employees that they are against giving them relief and if they vote for it then the City Manager has stated that the city open themselves up to a possible unfair labor practice. As far as he's concerned, the Commission is in a no win situation because of what the City Manager has stated. He said he had no problems with giving the employees relief and the Commission has been clear in the beginning of the

year that when the money got better they wanted to give the employees some relief; but he is hearing these comments in terms of opening the city for legal issues. The city is not in a win-win situation but it is what it is.

Commissioner Holmes explained that when the City Manager had the contract on the agenda last month and the comment was made on that particular night as to the reason why he pulled it; the same thing stated that night has been stated to Mr. Moore days before he showed up to the meeting on that day. The reason Mr. Moore is present before the Commission is because he asked him to come before them. He stood by his suggestion to Mr. Moore to send the employees a letter to either vote for or against the union and if the majority vote in favor then the City Manager could bring the item back to the Commission.

He continued by saying he is tired of sitting up there debating to get the Commission to try to understand the needs of the employees. If the city could hire all these extra people giving them bonuses then they can give the employees a small increase in their salary. He stated that he would continue his resolution to the next meeting to give the PBA and AFSCME, which has nothing to do with his resolution, an opportunity to do whatever they need to do.

He further continued the above resolution to the next meeting.

Commissioner Johnson stated that she didn't feel the resolution should be continued. The City Attorney has heard the discussion from the Commission; therefore, he should negotiate with both parties making sure the necessary language is in there. She was of the opinion that the employees are appreciative of having a job but there are some who are going through hardship and this increase may assist them. In addition, she wants to make sure all employees are included because the last time the Commission went through this the City Clerk, City Manager and City Attorney were left out. Once the Commission says all employees she doesn't want anyone going behind her back and pulling it back because they have the power to do.

She continued by saying that she is not taking her seconded on the motion back because the City Attorney has heard the discussion.

Being in support of the resolution, Vice Mayor Taylor stated that she too wants all employees to receive a cost of living increase; but she doesn't want to put the city in a precarious situation where they are telling the union that this is it regardless of what is said. She asked does the city have the leverage to do that?

Attorney Geller advised that he would have more leverage to approach the unions if the resolution has not yet passed.

Commissioner Johnson stated to the City Attorney that if he didn't have the leverage when he takes it to the union it has to come back to the Commission anyway.

Vice Mayor Taylor stated that the Commission in passing this must be aware of this night.

Mayor Kelley clarified that if the Commission passes the 3% increase, the union has asked to vote what is sent to them as the agreement and that is what the Commission must be aware of. He made it clear that the Commission wants the employees to get paid; however, no other city to his knowledge has kept all their employees but the City of Opalocka so it goes without saying that they are concerned about employees. The Commission must be very clear because Commissioner Holmes made clear that it has nothing to do with the union contract.

Commissioner Tydus withdrew her motion on the above resolution. It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	No
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

16-2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPOINT A CITY ATTORNEY; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J. and M.T.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson advised that the city's original charter from 1956 specifies the City Attorney must have at least five years of experience and does not have to reside in the city. She made reference to the three recommendations from the Charter Review Board to go out for a referendum and after reviewing all the information in the Charter it was then that it weighed down on her that the City Attorney is a full time position and must be accessible to the Commission. She said she supported the resolution for an in-house attorney because she was under the impression the city needed an in-house attorney but after conducting research the Charter doesn't specify that.

As stated earlier during the meeting, Commissioner Holmes stated that he does not have a problem voting to make Mr. Geller a permanent City Attorney; however, he will not do it at that time because since 1994 city attorneys had been hired according to the city's charter. Of concern was the fact that the Commission passed the resolution for a search for an in-house City Attorney and at that time there was no mention of it having to go out for a referendum.

He continued by saying that he wants to make sure the Commission hires an in-house city attorney Monday – Friday from 8:00 a.m. – 5:00 p.m. so that there is someone in the office on a daily basis to handle all of the city's legal affairs. He said he could not support

the resolution to make Mr. Geller permanent; however, he will support the following resolution on the agenda for a six month extension until the city can go out for a referendum.

Commissioner Tydus stated that it had not been made clear to her the urgency for the appointment of a permanent City Attorney when the Commission has not followed the legislation previously adopted in receiving resumes to consider in their search for a City Attorney of which Mr. Geller would have the opportunity to contend for as well. At the last commission meeting, a directive was given to the City Manager to advertise to receive resumes in the search for a City Attorney. She asked for an update on that directive?

Manager Patterson stated that he is at the point of sending out the advertisement to all publications previously used in the past search for City Attorney. He said he had been out of town the past week and was going to advertise this following week.

Commissioner Tydus stated that she didn't see where that would be a task that would take over two weeks to complete; however, she would accept the City Manager's explanation. Nonetheless, to the sponsors, she asked what the urgency was for the appointment and to not follow the process previously set?

Commissioner Johnson stated that she didn't have an urgency but after reviewing Article V dealing with the City Attorney she now has a clear definition of what it states in Section 8 of the Charter which reads as follows: *The City Commission shall have the sole power of appointment and removal of the City Attorney.* This doesn't mean it has to be posted. Although she voted in favor of the previous resolution to go out for a search, she had since received more information and knowledge based on what the Charter actually says versus what she was lead to believe and now she can make an affinitive decision with no urgency. As a legislator she has the right to bring this resolution to the Commission. She stated to Vice Mayor Taylor that she didn't even know she co-sponsored the resolution. As with any resolution coming before the Commission, should this pass or not pass then she assumed the other legislation is mute from that point on.

Commissioner Tydus stated that she could not support this resolution knowing that the Commission has not carried out the initial legislation.

She continued by asking the City Attorney at what point is a co-sponsoring legal because this can leave the perception that this resolution was sponsored out of the sunshine.

Attorney Geller advised that the perception would be incorrect because the Commission has had co-sponsors even during the time he's been here on a number of issues. In this particular case two different members of the Commission contacted him independently to request the same resolution be sponsored. In preparing it and delivering it to the City Clerk, he had the sponsor as each of the two who had contacted him independently to co-sponsor because the subject matter was identical. This happened recently on a relief resolution that was co-sponsored by the Mayor and Commissioner Holmes where two individuals had the same issue. However, there was a separate case where there was a difference on a second relief resolution and in that case they went forward with both.

Commissioner Tydus stated that this was clarification the Commission had to know because she cannot deny the fact that the perception is here.

Attorney Geller clarified that whenever two commissioners contact the City Clerk, City Attorney or City Manager and ask for something to be prepared, if it's identical then they would be shown as co-sponsors. If there is a clarification, certainly as staff, they are permitted to speak with the members of the Commission to clarify to see if it can go forward in that fashion and that does not in any sense imply that those commissioners have been in touch with each other or had any communication and a co-sponsorship is certainly proper.

Commissioner Tydus said she was familiar with the fact that there has been occasion where there was a matter discussed from the dais where two or more commissioners had a common interest. In that open forum it was determined that at a subsequent meeting there would be a resolution co-sponsored by those common interests; but that was in an open quorum and setting such as this and it has never been presented out of an open forum and that's why she needed the clarification.

Attorney Geller stated that there have been co-sponsors in the past just as long as the commissioners don't speak with each other they are certainly permitted to communicate what they want to staff such as himself or the City Clerk and if what they want is the same then it's prepared to show that they're co-sponsors.

Commissioner Tydus asked if Attorney Geller would be the one to intermediate between the two that this particular legislation was presented by a specific commissioner prior to bringing it to his attention and he would give that individual the opportunity to want to co-sponsor?

Attorney Geller said it didn't have to necessarily be him because the City Manager or the City Clerk could get that same request and as far as one coming before the other, he asks his assistant to prepare the legislation and he doesn't specify an order.

Commissioner Tydus said two commissioners may want the same thing; however, it may not be the same conditions or provisions.

Attorney Geller advised Commissioner Tydus that she was correct and in fact with the Haiti relief resolution there was some difference and that one went forward with two independent sponsors.

With regards to the directive given at the last meeting by Commissioner Tydus to advertise for the City Attorney, Commissioner Holmes said according to the charter it takes three members of the City Commission to direct the City Manager to do something in the form of a resolution. Therefore, he told the City Manager to hold off on the request from Commissioner Tydus because he wanted to place a resolution on the agenda at this meeting to extend the services of the Interim City Attorney for six months.

Commissioner Tydus said that the Commission is confronted again with selective service and she would leave it as that because the record speaks for itself. There have been several directives given to the administration at that meeting which did not require or was a vote of the Commission taken; but she would keep it as a matter of record from this day forward that each and every time a directive is given to any staff they would make reference to there must be a vote.

Commissioner Holmes stated to Commissioner Tydus that it didn't mean the City Manager could not follow the directive if the request is given to him. His statement was to let her know that the only reason the City Manager held off on the directive to go out for a search of an in-house attorney was because he asked the City Manager to wait so that he could place the resolution for the extension on the agenda. However, the charter states it takes the majority of Commission members to tell the City Manager what to do; but they have not been following that procedure.

Mayor Kelley advised the City Manager that when this Commission passes legislation it is for him to follow through on it in a reasonable time. After hearing the City Manager's explanation to Commissioner Tydus regarding her directive and Commissioner Holmes clarified it. When the Commission passes legislation, it is incumbent upon the City Manager to follow through on it. He said when citizens come before the Commission and he gives a directive to the City Manager to provide a report to the Commission that is a directive he expects as the chair to be carried out because what he is asking for will go to them collectively.

He further asked, what is the term for the City Attorney because the resolution didn't address that?

Attorney Geller advised that the charter states "at the pleasure of the Commission".

Mayor Kelley asked, was the sponsors intent to include a term or to leave it open?

Vice Mayor Taylor replied, no.

There being no further discussion, the motion passed by a 3-2 vote.

Commissioner Tydus	No
Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	Yes
Mayor Kelley	Yes

Commissioner Tydus left the meeting at 9:35 p.m.

16-4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DIRECT THE MANAGER TO FREEZE ALL NON-ESSENTIAL SPENDING AS OF MID APRIL IN ANTICIPATION OF LOWER REVENUE COLLECTIONS IN THE COMING FISCAL YEAR; PROVIDING FOR

INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Mayor Kelley to pass the above resolution.

Since the last meeting, Commissioner Johnson stated that hopefully the Commission had the opportunity to review the attachment supporting the resolution; but because the cost saving measurement there must be a process in place to make sure there is revenue to support what is being done. She informed the Commission that she took the police department and the gasoline out.

Mayor Kelley stated that he was hoping the sponsor deferred the resolution because he didn't have the chance to speak to the City Manager on the specifics and he did notice the resolution addressed cellular phones for the City Manager and Assistant City Manager; however, he doesn't know who it applies to. In addition to that he agreed with the gasoline but the Commission had instructed the Public Works Department to come up with a plan or structure on the usage and decrease of gasoline and he had not received that information.

He continued by saying that he hopes the Commission gets all of those items addressed before the next meeting. For the record, he directed the City Attorney to make sure when the resolution comes back that he's the original sponsor of the resolution.

The motion and seconded were withdrawn.

Commissioner Johnson deferred the above resolution to the next regular meeting and stated that she would like to be listed as the co-sponsor.

16-5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, FINDING THE NEED FOR A COMMUNITY REDEVELOPMENT AGENCY; DIRECTING THE INITIATION AND PREPARATION OF A REDEVELOPMENT PLAN; FURTHER AUTHORIZING THE CITY MANAGER TO ISSUE A REQUEST FOR QUALIFICATION SEEKING CONSULTING SERVICES TO DEVELOP A MASTER PLAN FOR THE GEOGRAPHIC LOCATION WITHIN THE CITY BOUNDARIES WHERE COMMUNITY REDEVELOPMENT WILL TAKE PLACE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, (Mayor Kelley passed the gavel to Vice Mayor Taylor) seconded by Mayor Kelley to pass the above resolution.

Commissioner Johnson asked for a legal opinion on a no bid contract that doesn't have a dollar amount?

Attorney Geller advised that a no bid contract without a dollar amount is invalid.

Commissioner Johnson stated that the Commission already has a rebidding contract management team that is in a non-competitive way; therefore, she is concerned about giving out a contract.

Attorney Geller explained that the Commission previously had an RFQ and made a selection. Pursuant to the selection, the individual selected would have a contract which was negotiated for a dollar amount to do the finding of need. It further said that the same company would be going forward to do Phase II subject to negotiating a contract with the dollar amount but there was a qualifier; it said "subject to Commission approval". The City Commission therefore has to make the decision and it is not a decision the administration could make. The City Commission could direct the City Manager to negotiate only with one party or they could issue an RFQ to receive multiple proposals going through the normal process.

Commissioner Johnson stated that the Commission does the selecting not staff. She said that the previous legislation presented to them didn't have the verbiage in it and it appears that what normally comes in front of the Commission is revised once it goes to the contracting process. This is the reason she wants all contracts to come back before them because she had witnessed on many occasions that the contracts are being revised after it has been presented to the Commission.

Mayor Kelley stated if it is the desire of the Commission for an RFQ then that's fine; however, when he pulled the resolution on this item it read for the finding and redevelopment plan. In reviewing the minutes, if he was bidding on this, to him he was bidding on both. The minutes from that meeting (September 23, 2009) is clear on page 12 that if he was a business person he would interpret that he would be doing the finding and the plan. However, if the Commission wants to come back and say to the City Manager that they want to approve that separate contract then he would be in favor of that. He said he doesn't want when companies come before the Commission and they bid on a process that they believe is for both pieces as in this case and that it is separated or changed in mid stream.

He continued by saying that Mr. Carras presented the finding to the Commission and the company had initially done good work; therefore, in looking at this he doesn't think this could be interpreted as a no bid because it was very open in the process. He said he would be in favor of having the contract negotiated by the City Manager with the current company and brought back to the Commission.

Commissioner Johnson stated that her intent was to not have this issue lingering without some action. She directed the City Attorney to provide the language for the amendment to the above resolution.

Attorney Geller read the amendment as follows: (Title of the resolution) Further authorizing the City Manager to negotiate a contract with Carras Community Investment for consulting services to develop a master plan for the geographic location within the city boundaries where community redevelopment will take plan subject to City Commission Approval. (Section 2) Further authorizing the City Manager to negotiate a contract with Carras Community Investment for consulting services to develop a business plan for the geographic location. The City Commission shall review and approve the proposed contract to develop the master plan and shall determine the terms and conditions of the services to be provided.

Mayor Kelley said that normally he wouldn't allow all those changes but he would like to do this to allow staff to negotiate and get it back to the Commission for final approval.

Commissioner Johnson clarified that a resolution is only good for one year; therefore, it is time sensitive and it needs to be specified.

Attorney Geller said he would make sure that goes into the contract.

There being no further discussion, the amendment passed by a 4-0 vote.

Commissioner Tydus	Not present
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes
Vice Mayor Taylor	Yes

There being no further discussion, the motion on the resolution passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes
Vice Mayor Taylor	Yes

Vice Mayor Taylor relinquished the gavel to Mayor Kelley.

16-7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO REFINANCE THE CITY'S SERIES 1994 CAPITAL IMPROVEMENT REVENUE REFUNDING BONDS AS SERIES 2010 BONDS AND TO ISSUE SERIES 2010A BONDS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Based on the concerns from the citizens, Commissioner Johnson asked that the City Manager defer the resolution to allow for citizen participation.

Vice Mayor Taylor asked, is this item time sensitive?

Manager Patterson stated that this item is time sensitive but not that timely.

Vice Mayor Taylor agreed that the city should allow for citizen participation.

Mayor Kelley suggested that the City Manager defer the above resolution and the other resolutions on the agenda relating to the same issue until after hearing from the citizens.

Commissioner Holmes suggested that the Commission keep in mind the window for the interest rate.

Attorney Geller advised the Commission that the above resolution does not issue bonds because they need an ordinance to issue bonds which must go through two readings. The only effect of the resolution is to permit the City Manager to move forward and whether the Commission defers this resolution and the other then he suggested that they keep in mind the window of advertising on the other two resolutions. The process is that the Commission has to pass a resolution for the City Manager to develop a plan and bring it to them; however, ultimately prior to moving forward on these bonds they would have to adopt an ordinance through two readings.

Vice Mayor Taylor stated to the City Attorney that the resolution is authorizing the City Manager to refinance the bonds and it does not say to permit the City Manager to move forward with the process. She asked if an ordinance needed to refinance a bond?

Attorney Geller replied, yes.

Vice Mayor Taylor said if an ordinance is needed to refinance a bond then this resolution is invalid because it's directing the City Manager to refinance the bond.

Attorney Geller clarified that sometimes everything is not in the title; however, Section 2 of the resolution reads: upon terms to be approved by the City Commission. He added that the City Commission can only approve those terms by ordinance and perhaps that language could have been included in the resolution. The City Manager cannot issue or refinance bonds; only the Commission has that power by ordinance. The resolution is to allow the City Manager to move forward with the process and bring an ordinance to the Commission at some point when they have selected bond counsel and a financial advisor.

Mayor Kelley asked, does the Commission have time to schedule a meeting for citizen participation?

Manager Patterson replied yes because he didn't feel as if the market would change drastically.

Mayor Kelley directed the City Clerk to find a date to schedule a Town Hall Meeting on the bond issue.

Manager Patterson suggested that the Commission move forward with the other two related resolutions due to time constraints.

The motion and seconded on the above resolution were withdrawn. The resolution was deferred to allow for a Town Hall Meeting regarding bond refinancing for citizen participation and would be brought back at a later date.

16-8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ADVERTISE A REQUEST FOR QUALIFICATIONS (RFQ) FOR BOND COUNSEL TO OBTAIN LEGAL GUIDANCE FOR THE REFINANCING OF THE SERIES 1994 REVENUE BONDS AS SERIES 2010 BONDS AND ISSUANCE OF SERIES 2010A BONDS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Although staff had contacted Fidelity Financial Services to work on several items, Mayor Kelley asked, was it clear to them that the City Manager was moving forth and will no longer do an agreement?

After reading the contract, Manager Patterson said he is of the opinion that it is no longer valid and that is the reason for this resolution. However, he subsequently understood Fidelity has been doing some work for the city since that contract expired.

Mayor Kelley stated that he didn't have a problem with going out for an RFQ and Mr. Hall has the right to apply but when the city has people doing work, once this agreement was finished staff continued to use the service instead of bringing it back. This goes back to what he stated with Carras and others as to why people may not want to do business with the city because they are left out. He said if Fidelity Financial Services has done work which the city could substantiate then the City Manager must make sure they get paid for that work.

He continued by saying that his preference would have been to keep Fidelity Financial Services; however, if the Commission wants to go out then that's fine.

In going out for an RFQ, Vice Mayor Taylor asked if it is possible the city could get more than the $500,000.00. She suggested that the City Manager keep that in mind because of the capital improvement and she knows the city has said $500,000.00; however, that amount may have been with dealing with one person.

In going back over a year ago, Mayor Kelley said he asked the previous City Manager and the Finance Director to look at creative ways of financing and what he said to the City Manager and to Mr. Hall in the past is that $500,000.00 is not etched in stone because he wants to get more than that. That amount was a projection to finish the park

but he has always been under the opinion of trying to get more. His main concern was trying to find revenue to deal with the infrastructure and he is hoping on trying to get more out of the refinancing.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

16-9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ADVERTISE A REQUEST FOR QUALIFICATION (RFQ) FOR A FINANCIAL ADVISOR TO OBTAIN FINANCING GUIDANCE FOR THE REFINANCING OF THE SERIES 1994 REVENUE REFUNDING BONDS AS SERIES 2010 BONDS AND THE ISSUANCE OF SERIES 2010A BONDS. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson reiterated that a resolution is only good for one year and she would like the City Attorney to specify that it is for one year only.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

16-11. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DIRECT AND AUTHORIZE THE CITY MANAGER TO ACCEPT THE GRANT FROM THE SOUTH FLORIDA WORKFORCE INVESTMENT BOARD (SFWIB), FLORIDA BACK-TO-WORK SUBSIDIZED EMPLOYMENT PROGRAM CONTRACT TO PROVIDE EMPLOYMENT FOR INDIVIDUALS WHO ARE ELIGIBLE UNDER THE TEMPORARY ASSISTANCE FOR NEEDY FAMILY (TANF) GUIDELINES, IN THE AMOUNT OF ONE HUNDRED EIGHTY-FOUR THOUSAND SIX HUNDRED NINETY SEVEN DOLLARS AND EIGHTY-EIGHT CENTS ($184,697.88); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson stated that in the detail of the resolution it stated there was 13 positions not 7 positions allotted making it appear as though there was a revision. Secondly, she asked, why is this resolution just now coming before the Commission when the start date was April 16, 2010 and how would that affect the program and money for the 22 weeks ending September 30, 2010?

Manager Patterson stated that the city received the information on April 15, 2010 and the Human Resources Department is currently refereeing individuals to the three different locations in Hialeah Gardens and Hialeah.

Commissioner Johnson asked, are there 13 positions?

Manager Patterson replied, yes. He said most of the jobs were in the Public Works Department.

Guithele Ruiz-Nicolas, Human Resources Director for the City of Opa-locka came forward and stated that the grant is for a six month period ending September 30, 2010. The positions are for the City of Opa-locka; however, because of the criteria for this particular grant, the individuals must be pre-approved by the South Florida Workforce. Those individuals then get a referral, come to the city's Human Resources Department and completes the application and from there the city completes the interview and selection process.

Commissioner Johnson stated that she wants to make sure the city is targeting Opa-locka residents for the employment. She further spoke about the importance in terms of the recruitment and promotions of these positions and making sure the individuals are actually residents of Opa-locka and not of the zip code 33054.

Mayor Kelley stated that in hiring the 13 individuals, if all are not Opa-locka residents then there should be a good reason why.

Mrs. Ruiz-Nicolas stated that the desired Opa-locka residency is in all of the job postings and in most of the positions the city will find residents of Opa-locka; however, there are a couple of technical positions they may have to broaden the base of applicants.

There being no further discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

13. NEW ITEMS:

14. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

15. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION(S):

16. ADMINISTRATION:

CONSENT AGENDA:

A. CITY MANAGER'S REPORT:

Manager Patterson reported his attendance at the National Forum for Black Public Administrators in Greenberg, North Carolina and times are not getting better for cities around the country which will have to learn to do more with less.

He thanked Commissioner Johnson for the going green proposal presented which is taking place all around the country.

Vice Mayor Taylor directed the City Manager to pick out the top ten dump spots throughout the city to use those sites to beautify those sites with plants, etc.

She requested that the City Manager provide the Commission with a report on the amnesty program which was introduced in 2009; provide a report as to whether all city vendors have updated contracts and are those contracts in a centralized location; and include in the upcoming budget a lift for the Public Works garage.

With regards to her directive to clean the drains, Vice Mayor Taylor said the City Manager's response was that the drains are cleaned on an as needed basis. However, because hurricane season is approaching, the city cannot clean the drains as needed due to the poor infrastructure. She said all drains must be cleaned particularly in the area of homes due to the flooding. Additionally, behind the gardens apartments there's a puddle of water that stays there all of the time which produces mosquitoes and a potential for health hazard.

She further directive the City Manager to address the water plant site by erecting a temporary construction fence on the corner of Codadad and Burlington due to the potential risk of someone getting hurt. The City Manager's response to her directive at the last meeting regarding this same request was that the people would erect a fence once

they are finished; however, that would be too late. In addition to that, the Commission must see the end results when finished.

Vice Mayor Taylor stated that she was told NW 131st Street was not a part of the CRA and therefore she would like the City Manager to take another look at that because those residents need a relief in that area from the flooding.

Mayor Kelley stated that someone put up caution tape at the water plant site and he is not sure if the city or the contractor did that because he had sent an email regarding the same thing.

Daniel Abia, Public Works Director for the City of Opa-locka said that the contractor put up the yellow tape.

Mayor Kelley said the bottom line is that the city settled for caution tape when the directive was for a fence.

In terms of the flooding, he said that the Deputy Chief remembers this because when the gun bounty was held that area was flooded then and he brought it to the attention of Public Works and Community Development. At that time it was stated that they would pump it out because there was no where for the water to drain out. The Vice Mayor is saying that the water is still there so it wasn't pumped out or drained out since then.

Commissioner Holmes directed the City Manager to include the saggy pants ordinance as a part of the rental application for city facilities. In addition to that, the police department must enforce the ordinance.

He continued by requesting that the City Manager address the dirt bikes and jet skis over near Wilmington Street (canal).

He directed the City Manager to have Code Enforcement make an effort in tracking the dead chickens showing up on the streets near Robert B. Ingram Elementary School.

He further stated that when the ordinance for the consumption of water was increased to 8,000 gallons to give the residents a relief in their utility bill the overall discussion at that time was that the consumption could be increased to at least 11,000 gallons without it really affecting the city. Because there are still many complaints relating to high water bills, he directed the City Manager to look into increasing the consumption by 2,000 gallons without increasing the current rate. Additionally, he asked the City Manager to look into whether there is money in the budget for additional vehicles and provide between now and the next meeting. If so, then he would like to see a resolution to purchase additional police vehicles.

Commissioner Holmes commended Starex Smith for taking care of the broken fence at the entrance of Ingram Park immediately after it was brought to his attention. Also, the city is doing a great job with Segal Park and now he is waiting for the construction to start at Sherbondy Park. He directed the City Manager to make sure the electricity is

installed in the trailers at Sherbondy Park so the Parks Department would be able to move out of the building into the trailers.

Previously Commissioner Johnson gave a directive to the City Manager to prepare a letter to send to Miami-Dade County regarding the opening of the library on Fridays versus Saturdays; however, she has yet to receive a copy of the letter.

Manager Patterson advised that he would provide Commissioner Johnson with the information he had.

Commissioner Johnson said she was pleased with the outcome of the Welcome Kit although there are quite a few changes from what she previously started off with and the font size must be improved. She suggested that the City Commission provide their input on the Welcome Kit in order to get a finished item by June or July. Also, she requested that the IT Department work on a CD of the Welcome Kit in addition to posting it up on the city's website.

She continued by stating to the City Manager that she noticed in the booklet provided to the Commission that there's outstanding debt owed to the city in the amount of 1.9 Million Dollars. She recalled a resolution adopted several years ago for a collection agency would collect the debt on behalf of the city earning a certain percentage of the money collected. She directed the City Manager to get a copy of that resolution and follow up on it.

She further expressed her concerns relating to the city's expenditure of $18,256.59 in the month of March for staffing services and the city's payment to Direct TV. Although the monthly payment is $89.00 she suggested that this is looked into because the city has Comcast. Additionally, she would like to know who in the city is receiving Direct TV.

With regards to the allegations of retaliation against those individuals who make complaints through the Code Enforcement Department, Commissioner Johnson said this should not be occurring and the Whistle Blower's Act applies to everyone.

In looking at the businesses throughout the city, she suggested that Code Enforcement enforce the ordinance so that the buildings are beautified; however, the city must first take care of their own property.

She stated that she is concerned about going green because the environment is very important. The Commission has been talking about going green for three years now and she has yet to see a workshop. In going green, if the city is going to have a paperless operation there aren't any recycling bins in the city offices. She directed the City Manager to make sure all city offices have recycling bins.

She further directed the City Attorney to prepare a resolution prohibiting smoking in city vehicles.

Commissioner Johnson directed the City Manager to properly close up the former Office of the City Clerk / City Commission offices at Historic City Hall to prevent from having

mold build up due to the lack of air in those offices. She stated that the Office of Community Services, CET and Weed & Seed Team must get more involved by providing technical support to citizens and this information must reach the citizens so that they know the services are available.

She continued by saying that the city must tell it's own story in terms of everything that's going on and sometimes they don't do a very good job although she is very grateful of the community view.

Commissioner Holmes thanked the City Manager for the cross walk on Fisherman Street. In terms of the Welcome Kit, he said prior to the pull your pants up signage being knocked down at the corner of NW 151st Street and NW 27th Avenue that was a beautiful site coming into Opa-locka along with the city's Welcome to Opa-locka sign. This could have been utilized on the front of the Welcome Kit.

Commissioner Johnson expressed her concern about the "no trespassing" signage in the parking lot of the State building although the City of Opa-locka gave them the property. Because the city employees park in that parking lot city staff needs to speak with the administrators for the property to inform them of the history of that property.

Mayor Kelley said he didn't even like the sign because the city gave that property to the state. He directed the City Manager to contact the person responsible and if they want to put a sign with a caveat to include city employees and anyone coming to the city offices. He said he didn't like that tone or connotation of no trespassing as it relates to folks who work with the city considering the city gave them the property and there's nothing in that agreement indicating city employees can't park in their parking lot.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the Commission was provided with all the finance reports in the booklet. As it relates to the 1.9 Million Dollars in outstanding bills, he said approximately 1.7 Million of that are current within the 30 days; however, they have a problem with being one month behind.

He proudly announced that for four consecutive years the City of Opa-locka has received the Distinguished Budget Presentation Award from GFOA for the 2009 Budget.

Commissioner Johnson stated that although the 1.9 Million Dollars is in outstanding bills, if someone owes the city for water and they continue to provide the water then would will the bill be paid off.

Dr. Orji advised that the customers are paying towards their outstanding bills.

17. OFFICIAL BOARD REPORTS:

18. CITY ATTORNEY'S REPORT:

Attorney Geller reported that the city got the contractor to build a green silver certified LEED building and one consequence of that as the Commission is aware for a number of reasons not using the previous architectural and engineering firms that originally designed the plans, the city did put out for a construction management but currently there's not a architectural and engineering firm. There are some minor design changes required by switching the building over to green and silver. The city has received from the construction company a proposed change order where they say they would undertake to do the additional design work and not increase the overall amount of the contract. He said there is a $75,000.00 allowance in the existing amount which is for miscellaneous and it was proposed to the city that the contractor would do the additional design work necessary as design build to do the changes necessary for it to be a green building silver LEED certified. Although this is a very interesting proposal, it would mean that the work can get done quickly and it would not cost the city any money beyond that what has been already budgeted. He said he would be discussion this issue with the City Manager but he wants to make sure the Commission is fully aware of this to get their input before moving forward with it.

Commissioner Johnson suggested that this come back in legislation format so that the Commission can be clear.

Attorney Geller advised that under no circumstances is the administration or the attorney going to make the decision about that amount of money; however, this is not increasing what the city has budgeted.

Commissioner Holmes stated that CBHC, LLC indicated that they would continue to do whatever needed to be done with no additional cost to the city. If the contractor is willing to do the work at not cost to the city then the City Attorney should get that in writing and move forward.

Attorney Geller explained that when the contractor stated "no cost" what they meant was within the same budget; however, it states that the $75,000.00 allowance which is for miscellaneous and if there is no miscellaneous then the city gets to keep the money. He said this is not increasing the budget but it's not free and it also seems to be probably cheaper and definitely quicker than anything else the city could do. Ultimately because this is a change, he would bring it back to the Commission; however, in the meantime he wants their input.

In the discussion with the representative of CBHC, LLC, Commissioner Holmes said there was no mention of miscellaneous; however, he saw in writing that the contractor would complete the work at no cost to the city.

Attorney Geller agreed to stop by Commissioner Holmes office the following day to show him where it talks about miscellaneous in the contract.

Commissioner Holmes directed the City Attorney to stay on top of this issue and move on it.

Attorney Geller reported on the three litigation cases dealing with a public records matter and the other two against and by the Flea Market.

He continued by saying he would have the legislation prohibiting smoking in city vehicles at the next regular meeting. Also, in terms of the Senior Discount Drug Program Commissioner Johnson indicated that is something the City of Miami Gardens does and he is reaching out to Miami Gardens to have that for the next meeting.

With regards to the hiring incentives given to police officers and because the city is concluding the PBA negotiation process they may be in position where it's possible for the Chief and Deputy Chief to bring in additional officers. One of the things they are working on specifically is going to be to include if there is any decision to go ahead with hiring incentives to make sure it is structured where the money is not given all upfront. This may make the hiring incentive a little less attractive because it won't be up front like a signing bonus. He asked that the Commission give their input on that if any.

He further said he had some thoughts on the Code Enforcement retaliation issue in terms of moving forward; however, he would like to know if there's any particular information the citizens brought to Commissioner Johnson then it would help in designing something to move forward on that.

Attorney Geller stated that he believes he could bring both union negotiations to a conclusion in the upcoming future.

He reported on a claim against the city during the time of financial emergency where the city apparently neglected to pay some contributions to the FRS for two employees over a period of time (Helen Storr and Jannie R. Beverly). The State of Florida was billing the city for those two individuals going back into the 90's and for two other employees that were more recent seeking a sum in excess of $411,000.00 from the city. He said his colleague William Kramer went after the state about the fact that if this mistake occurred during the period of the financial oversight board then how could the mistake be laid entirely at the feet of the city. The state has agreed to take $15,000.00 instead of $411,000.00. He thanked Dr. Orji and staff for providing the back up on this case.

He further stated that he had a good meeting with former Mayor John Riley and the City Clerk to go over several personnel issues and he doesn't believe the Commission will have to go the route of a Board of Inquiry now that the City Manager is back.

Attorney Geller stated that he is still working on the report for the Georgia Ayers property; however, that property was deeded to Georgia Ayers in 1995 by a private corporation, not by Miami-Dade County or the city. Further back in may have been owned by somebody but he is still researching that issue.

He continued by saying that he is working on a new piece of legislation with his colleague to give greater dignity and a super priority so that in some of the foreclosures cases the city may be in a position to collect on at least some of the liens imposed by Code Enforcement.

Mayor Kelley stated that as the mayor he always received the foreclosure notice and the city always seems to be at the bottom of the list for liens and he was going to ask the City Attorney to come up with legislation as just stated to strengthen in order to collect. He directed the City Attorney to continuing working on that legislation.

Commissioner Johnson directed the City Attorney to bring back the information requested by Commissioner Holmes at a previous meeting relating to insurance.

Attorney Geller advised that the item would have to go as a referendum item.

Commissioner Johnson suggested that a workshop is held to discuss this item.

She continued by saying that in speaking with the City Clerk it appears the Commission voted to give her compensation and somehow after the meeting she received the compensation but then it was taken away. She said she didn't want staff superseding anything voted on by the Commission. The City Commission is the supervisors for the City Clerk, City Attorney and City Manager and the matter should be taken up with them and not anyone else.

Commissioner Holmes explained that his "no" vote on appointing Mr. Geller as City Attorney was not against him but it is against what's in the charter which needs to be addressed by referendum.

Mayor Kelley informed the City Attorney that he would like to sponsor the resolution dealing with the liens.

19. CITY CLERK'S REPORT:

Clerk Irby read into the record a thank you card sent to Mayor Kelley from Mary Alice Brown and husband for honoring her during the Women's History Celebration.

She provided an update on the return rate for the Census 2010.

Mayor Kelley commended the City Clerk on the Census 2010.

20. MAYOR/COMMISSION REPORT:

Vice Mayor Taylor stated that she noticed on the Habitat for Humanity application there's a line for every area except Opa-locka and if that's a part of the revitalization then that line should be included in that application.

She apologized for not being a part of the Butterfly Garden Ceremony but she was concerned about the fact that the plaque did not include the Commission and she doesn't know who did that unless that one individual paid for that entire area. She said she didn't mind the sponsor but the Commission voted on the community garden and she had a vote in that. When the Commission votes on certain items, they become a part of it and their name should be mentioned.

She further stated that the meetings are too long and she doesn't know how that can be fixed but of course the Commission goes into discussion perhaps taking a look at the number of items on the agenda. She asked that the Commission or whomever sets the agenda that they break the agenda down and have some mercy.

Mayor Kelley stated that one of the reasons the Commission went into the Consent Agenda was to shorten it but what is occurring is that they are pulling items from the Consent Agenda that's dragging it out. He asked the City Attorney perhaps he forgot on putting a time limit on the Commission; however, he hasn't figured out how he would structure it. The only thing the Commission can't control is Citizens' Forum but the longest part is when the Commission gets into discussion and / or asking the City Manger questions. However, he has contemplated putting a time limit on the Commission but he has not put any legislation forth.

Commissioner Johnson reported her attendance the Town Hall Meeting, Butterfly Dedication, the Parks & Recreation Parents Meeting, monthly Community Action Agency Board Meeting and the Community Barbeque at Nathan B. Young Elementary. In addition to that she hosted the University of Miami Mobile Health Unit; however, the city will have to promote it more the next time.

Mayor Kelley reported his attendance at the Town Hall Meeting and said he was hopeful to get a demolition date for those HUD properties. He is still working on the challenge with the Cuyahoga property on Wilmington Street with the proposed new owners and the possible Brownfield dollars.

In addition to that, he attended the Mayor's Softball Challenge, Relay for Life Event, and the Faith Based Initiative Meeting.

He announced the activities scheduled for National Day of Prayer on May 6, 2010.

He further stated that he had the opportunity to attend the homegoing of Major Everett of the Opa-locka Police Department.

Mayor Kelley announced groundbreaking for Sherbondy Village which would take place on Thursday, April 29, 2010.

21. OFFICIAL BOARD APPOINTMENTS:

Mayor Kelley asked the City Attorney if there's anything prohibiting Karen Jackson from serving on the Housing Authority due to being a board member of the city's Personnel Board.

Attorney Geller advised that there is nothing that would prohibit her from serving on both boards.

Mayor Kelley appointed Karen Jackson, Johnnie Mae Greene and Luvenia Spears to the Housing Authority.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor approving the Mayor's appointments of Karen Jackson, Johnnie Mae Greene and Luvenia Spears to the Housing Authority.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

Mayor Kelley suggested that Commissioner Johnson get with the City Clerk to come up with a date for a formal meeting on going green.

22. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes to adjourn the meeting at 11:06 p.m.

MAYOR

ATTEST:

CITY CLERK